111	Premier Liberty Development, LLC v Nguyen 2018-01008782	**DEMURRER TO AMENDED COMPLAINT – NO TENTATIVE RULING** Plaintiff Premier Liberty Development (Premier) filed a first amended supplemental complaint asserting a single cause of action for declaratory relief. (ROA 633) Velocity demurred to Plaintiff's complaint on the grounds that it fails to state facts sufficient to constitute a cause of action because the claim is insufficiently pled. See, Code Civ. Proc. §§ 430.10(e) and 430.50(a). Premier's request for judicial notice is GRANTED. The court will take judicial notice of exhibits 1 through 10 to the Stein Declaration. "A general demurrer is usually not an appropriate method for testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff's interest." (Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 751.) **THE PARTIES SHALL BE PREPARED TO ADDRESS THE FOLLOWING QUESTIONS AT THE HEARING ON THE DEMURRER:** If the court were to grant the requested declaratory relief, what (if any) would be the impact on title to the property vis-à-vis the current owner? Would the current owner's right to title be affected? If so, how? If not, why not? What is Velocity's current interest in the property? What is Premier's current interest in the property? What was the basis of the restitution order from Premier to Velocity? Could the arguments raised in this demurrer have been raised in Velocity's previous demurrer? How and why or why not? If the arguments raised in this demurrer could have been raised in Velocity's previous demurrer, may the court consider them now?

112	Providence Capital Funding Inc v. Montejano 2024-01384853	**MOTION FOR ATTORNEY FEES - GRANTED** Plaintiff, Providence Capital Funding, Inc. ("Plaintiff" or "Providence"), moves for an order granting attorneys' fees in the total amount of $22,758.90, following entry of Judgment against Defendants Jesus Espinoza Montejano ("J. Espinoza") , Leticia Espinoza ("L. Espinoza"), and Avina Produce, Inc. ("Avina") (collectively, "Defendants") on Plaintiff's Complaint. The requested attorneys' fees in the amount of $22,758.90, consists of $21,771.40 plus an additional $987.50 in attorneys' fees incurring in preparing the instant motion. No opposition has been filed. **<u>Entitlement to Attorney's Fees</u>** "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.) Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).) Civil Code section 1717, subdivision (a) provides, in part: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." Civil Code section 1717(b)(1) states: "The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the